

Court No. - 29

Case :- WRIT - C No. - 49896 of 2009

Petitioner :- Pappu

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Ajay Kr. Sharma

Respondent Counsel :- C.S.C., Pankaj Kr. Shukla

Hon'ble Sunil Ambwani, J.

Hon'ble Ran Vijai Singh, J.

Shri Pankaj Kumar Shukla is allowed today's time to seek instructions. Put up day after tomorrow along with record of Writ Petition No.7074 of 2001, Zeeshan Vs. State of U.P. decided on 9.2.2009.

Order Date :- 16.9.2009

SP/

Court No. - 29

Case :- WRIT - C No. - 49896 of 2009

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Respondent :- State Of U.P. & Others

Petitioner Counsel :- Ajay Kr. Sharma

Respondent Counsel :- C.S.C., Pankaj Kr. Shukla

Hon'ble Sunil Ambwani, J.

Hon'ble Ran Vijai Singh, J.

Put up on 06.10.2009 before appropriate Bench as unlisted matter.

Order Date :- 18.9.2009

PKB

Court No. - 35

Case :- WRIT - C No. - 49896 of 2009

Petitioner :- Pappu

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Ajay Kr. Sharma

Respondent Counsel :- C.S.C., Pankaj Kr. Shukla

Hon'ble Sunil Ambwani, J.

Hon'ble Virendra Singh, J.

It is stated that Shri Jeeshan son of Shri Ikram-respondent no. 5 the consumer with the electricity connection had approached this Court and had obtained an order for deciding his representation against the assessment, on the condition that he deposits 50% of the amount. Instead of complying with the order dated 9.2.2009 in Civil Misc. Writ Petition No. 7074 of 2009, he filed an application with affidavit on which Shri M.P. Singh, Executive Engineer, Electricity Distribution Division-1st Saharanpur, by his order dated 30.6.2009, amended the recovery certificate and shifted the liability of the electricity dues to be recovered from Shri Pappu son of Shahbuddin-the petitioner in this writ petition.

In a case of theft of electricity even if the petitioner was found to be the beneficiary of illegally drawing electricity from some other connection, both the respondent no. 5 and petitioner would be liable to pay the dues. There is no provision in the Indian Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 to amend the recovery certificate and realise the same amount from a person, who was the beneficiary of the theft specially after this Court had directed his representation to be decided on deposit of 50% of the amount.

In spite of time granted on 16.9.2009, Shri Pankaj Kumar Shukla is not ready with the instructions. Let the instructions be completed by next Tuesday.

Shri M.P. Singh, Executive Engineer will file his own affidavit and appear in person on 16.9.2009 to explain as to how he had defied the order of the Court, and amended the recovery to be made from the petitioner.

Put up on **13.10.2009**. A copy of the order be given to Shri Pankaj Kumar Shukla for compliance.

Order Date :- 8.10.2009

RKP

Court No. - 35

Case :- WRIT - C No. - 49896 of 2009

Petitioner :- Pappu

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Ajay Kr. Sharma

Respondent Counsel :- C.S.C., Pankaj Kr. Shukla

Hon'ble Sunil Ambwani, J.

Hon'ble Virendra Singh, J.

Heard in part.

It is stated by Shri Pankaj Kumar Shukla, appearing for respondents that the electricity department is going to file a protest petition against the final report submitted by the police.

Shri Mahendra Pal, Executive Engineer, Electricity Urban Distribution Division-1st, Saharanpur is present in person. He has filed a short counter affidavit.

Shri Ajay Kumar Sharma has also filed supplementary affidavit annexing therewith the police investigation report in which it was found that no one by the name of Pappu lives in the locality and that the entire story was set up by the officers of the electricity department.

List again on **27.10.2009**.

In the meantime the petitioner may file rejoinder affidavit. Shri Pankaj Kumar Shukla will also file a reply to the supplementary affidavit filed by Shri Ajay Kumar Shukla.

Shri Mahendra Pal, Executive Engineer shall remain present along with record of the electricity department on the next date.

Until **27.10.2009** the recovery of electricity dues against Pappu by impugned citation shall remain stayed.

Order Date :- 14.10.2009

RKP

Court No. - 9

Case :- WRIT - C No. - 49896 of 2009

Petitioner :- Pappu

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Ajay Kr. Sharma

Respondent Counsel :- C.S.C., Pankaj Kr. Shukla

Hon'ble Vijay Manohar Sahai, J.

Hon'ble Yogesh Chandra Gupta, J.

We have perused the order dated 14.10.2009. This matter is part-heard of Division Bench presided by Hon'ble Sunil Ambwani, J.

Put up to tomorrow i.e. 28.10.2009 before the aforesaid Bench after obtaining nomination from Hon'ble the Chief Justice.

Order Date :- 27.10.2009

NS

Court No. - 35

Case :- WRIT - C No. - 49896 of 2009

Petitioner :- Pappu

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Ajay Kr. Sharma

Respondent Counsel :- C.S.C., Pankaj Kr. Shukla

Hon'ble Sunil Ambwani, J.

Hon'ble Virendra Singh, J.

Supplementary counter-affidavit has been filed today.

Sri M.P.Singh, Executive Engineer is present in person.

Learned counsel for the petition prays for a week's time to file Supplementary rejoinder-affidavit.

The Executive Engineer will present along with the records.

As prayed list on 06.11.2009 for further hearing.

The interim order is extended till then.

Order Date :- 28.10.2009

F.H.

Court No. - 35

Case :- WRIT - C No. - 49896 of 2009

Petitioner :- Pappu

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Ajay Kr. Sharma

Respondent Counsel :- C.S.C., Pankaj Kr. Shukla

Hon'ble Sunil Ambwani, J.

Hon'ble Virendra Singh, J.

Shri Shashi Nandan, Senior Advocate assisted by Shri Ajay Kumar Sharma appears for the petitioner. Shri Pankaj Kumar Shukla appears for Paschimanchal Vidyut Vitran Nigam Ltd. Shri Mahendra Pal, Executive Engineer, Electricity Urban Distribution Division, 1st Saharanpur, is present. He has also brought the records.

We have heard the parties at length. The first information report and the provisional assessment order for recovery of electricity dues from Jeeshan and Pappu-the petitioner in this case as well as the documents annexed to the writ petition would show that the Writ Petition No. 7074 of 2009 filed by Jeeshan son of Shri Ikram was disposed of on 9.2.2009 with directions that if he deposits 50% of the amount under citation within a period of one month, he will be entitled to make an objection/representation before the authority concerned, who will consider the same giving full opportunity of hearing.

It is apparent that Jeeshan, without serving a copy of the order of the High Court, filed an affidavit before the Executive Engineer admitting that the electricity connection was in his name. It was disconnected in 2005 for failing to deposit the electricity bills. He entered into an oral agreement with Pappu to continue to deposit the bills and to use the electricity. Pappu continued to use electricity connection in the premises of Shri Shahbuddin and was caught stealing electricity for running 50 HP motor (as against the sanctioned load of 7.5 HP). The first information report clearly mentions that Pappu was drawing electricity unauthorisedly by making cuts on the overhead wires leading to the premises to Jeeshan. The Executive Engineer deciding the representation purportedly on the representation of the mother of Pappu Smt. Sahjadi made to the Commissioner of the Division passed an order on 30.6.2009 directing the amount to be recovered from Pappu giving rise to this writ petition.

The electricity connection is still in the name of Shri Jeeshan. On his admission, he illegally sublet the connection to Pappu and allowed him to use electricity. Pappu was manufacturing plastic granules with 50 HP motors and was caught stealing electricity.

Shri Shashi Nandan submits that Pappu has no concern with electricity connection and theft and that Jeeshan had set him up to face the prosecution and recovery. The mother of Pappu had sold the premises and that Jeeshan himself was manufacturing plastic granules with the help of 50 HP motor without paying electricity bills.

Prima facie, we find that on the allegations made in the first information report, and from the admissions of Jeeshan, who was also directed to deposit half the amount by the Court, the respondents illegally allowed his representation and directed the entire recovery to be made from Pappu. We also find Jeeshan guilty of concealing the order passed by this Court on 9.2.2009, to decide his representation. His representation was not required to be decided until he had deposited 50% of the dues.

Under Section 126 of the Electricity Act the recovery can be made from the consumer as well as the beneficiary of the unauthorised use of electricity.

Issue notice to respondent no. 5 Jeeshan. Steps within a week.

List for hearing on **11.1.2010**.

Until further orders, the interim order dated 14.10.2009 shall continue to operate. It will be open to the respondents to recover half the amount both in terms of the provisions of the Indian Electricity Act as well as directions of the Court from Jeeshan-respondent no.5.

Order Date :- 6.11.2009
RKP

Court No. - 29

Case :- WRIT - C No. - 49896 of 2009

Petitioner :- Pappu

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Ajay Kr. Sharma

Respondent Counsel :- C.S.C., Pankaj Kr. Shukla

Hon'ble Sunil Ambwani, J.

Hon'ble Mrs. Jayashree Tiwari, J.

List is revised. No one appears for the petitioner to press the writ petition.

The writ petition is dismissed for want of prosecution.

Order Date :- 3.12.2010

Monika

Court No. - 32

Civil Misc. Restoration Application No. 296 of 2011

In

Case :- WRIT - C No. - 49896 of 2009

Petitioner :- Pappu

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Ajay Kr. Sharma

Respondent Counsel :- C.S.C., Pankaj Kr. Shukla

Hon'ble Sunil Ambwani, J.

Hon'ble Mrs. Jayashree Tiwari, J.

List is revised.

No one appears to press this restoration application.

The restoration application is dismissed for want of prosecution.

Order Date :- 5.10.2012

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